

INTA Practice Guides Report

Trademark Cancellations Guide

Canada

SINGLE JURISDICTION REPORT

CONTRIBUTOR(S)

James Green

I. Availability — A. Availability

- Cancellation of a trademark is available for: national marks; international marks; This jurisdiction is not a member of the European Union; we have no European Union Trade Marks.
- "Cancellation" is not defined by legislation.
- Cancellation actions can be filed online at the following URL: <https://ised-isde.canada.ca/site/canadian-intellectual-property-office/en/trademarks-opposition-board>

II. Grounds — A. Absolute Grounds

- The following absolute grounds may be raised in cancellation proceedings: the mark is descriptive; the mark is misleading and/or deceptive; the mark lacks distinctiveness; the mark is generic; the mark consists of a geographical indication; the mark is functional; the mark is against public policy or principles of morality; the mark has not been authorized by competent authorities pursuant to Article 6ter of the Paris Convention; the mark includes a badge or emblem of particular public interest; the mark is used in a misleading and/or deceptive manner; the mark is prohibited in this jurisdiction; the application for or registration of the mark was made in bad faith; other absolute grounds, i.e., grounds that relate to the inherent registrability of a mark: the mark is primarily merely the name or the surname of an individual who is living or has died within the preceding 30 years; the mark is the name in any language of any of the goods or services in connection with which it is used or proposed to be used.

II. Grounds — B. Relative Grounds

- The following relative grounds may be raised in cancellation proceedings: there is an earlier application or registered mark; there are earlier use-based rights in an unregistered mark; the application for or registration of the mark was made in bad faith; the mark is a company name; the mark is a trade or business name.

II. Grounds — C. Grounds Other Than Absolute, Relative or Non-Use

- In addition to the absolute or relative grounds listed above and/or the non-use grounds listed below, the following grounds may also be raised in cancellation proceedings: The Trademarks Act provides for the cancellation of a mark on the basis that its registration is likely to unreasonably limit the development of any art or industry.

II. Grounds — D. Non-Use Grounds

- Non-use may be raised as a ground in cancellation proceedings. Section 45 of the Trademarks Act provides for summary cancellation proceedings for non-use. An application can also be made to the Federal Court of Canada for cancellation based

on abandonment, of which non-use is a central component.

- In relation to cancellation for non-use, "use" is defined as: A trademark is deemed to be used in association with goods if, at the time of the transfer of the property in or possession of the goods, in the normal course of trade, it is marked on the goods themselves or on the packages in which they are distributed or it is in any other manner so associated with the goods that notice of the association is then given to the person to whom the property or possession is transferred. A trademark that is marked in Canada on the goods or on the packages in which they are contained is, when the goods are exported from Canada, deemed to be used in Canada in association with those goods. A trademark is deemed to be used in association with services if it is used or displayed in the performance or advertising of those services.
- The definition of "use" provided above is derived from statute, regulation or administrative rule: Trademarks Act (R.S.C. 1985, c. T-13), Sections 4(1), 4(2), 4(3).
- Use by a licensee or with the consent of the proprietor constitutes use by the proprietor. Use by a licensee or with the consent of the trademark owner constitutes use by the owner provided the owner has, under the license, direct or indirect control over the character or quality of the goods or services provided in association with the trademark.
- The time frame within which a mark must be used in order to avoid cancellation runs from: the date of registration.
- Counting from the above date, to avoid cancellation for non-use, the mark must be used within: three years from the date immediately preceding the date of issuance of a notice issued pursuant to Section 45 of the Trademarks Act in respect of summary cancellation proceedings for non-use. Note that Section 18(1)(c) of the Trademarks Act also provides for cancellation of a registration on application to the Federal Court where the registration has been "abandoned." A determination of abandonment is a question of fact, with no legislated timelines to show use. There must be evidence of non-use and evidence of an intention on behalf of the registrant to abandon the mark.
- The consequences of use being interrupted are: With respect to summary cancellation proceedings for non-use pursuant to Section 45 of the Trademarks Act, a period of interrupted use would be relevant only where the interrupted use covers the entire three-year period from the date of the issuance of a notice pursuant to Section 45 and where the absence of non-use was not due to "special circumstances" that would excuse non-use. With respect to cancellation proceedings initiated pursuant to Section 18(1)(c) of the Trademarks Act in the Federal Court based on an allegation of abandonment, a period of interrupted use would not support cancellation of the registered mark unless the period of interrupted use was significant in length and there was evidence of an intention on behalf of the registrant to abandon the mark.

II. Grounds — E. Multiple Grounds

- An application for cancellation may be based on multiple grounds (i.e., on a combination of absolute, relative and non-use grounds). In respect of summary expungement proceedings under Section 45 of the Trademarks Act, the only issue permitted to be considered is non-use. For applications with the Federal Court, multiple grounds can be relied upon.
- The advantages of filing an action based on multiple grounds are as follows: There are more bases on which the applicant may potentially succeed in an attempt to have the registered mark cancelled.
- If an action is based on multiple grounds and the action could be disposed of on one ground, the other grounds will nevertheless be considered. To clarify: the Court may make a determination on all grounds or may not. It is a matter of judicial discretion as

to whether all grounds will be considered. There would be no requirement to consider all grounds.

II. Grounds — F. International Registrations and European Union Trade Marks

- Grounds for cancellation are the same in respect of international marks as they are for national marks.

II. Grounds — G. Introduced Later in Proceedings

- Additional grounds for cancellation may be introduced at a later stage in the proceedings. The deadline for introducing additional grounds is: In cancellation proceedings in the Federal Court, the Court may, on motion, at any time, allow a party to amend a document, on such terms as will protect the rights of all parties. No amendment shall be allowed during or after a hearing unless (a) the purpose is to make the document accord with the issues at the hearing; (b) a new hearing is ordered; or (c) the other parties are given an opportunity for any preparation necessary to meet any new or amended allegations.

III. Forum — A. Forum

- The forum for cancellation proceedings varies depending on the grounds on which the proceedings are brought. Cancellation proceedings based on absolute grounds may be brought before the following court or other judicial tribunal: The Federal Court has exclusive original jurisdiction to hear cancellation proceedings based on absolute grounds. Cancellation proceedings based on relative grounds may be brought before the following court or other judicial tribunal: The Federal Court has exclusive original jurisdiction to hear cancellation proceedings based on relative grounds. Cancellation proceedings based on non-use grounds may be brought before the following court or other judicial tribunal: The Federal Court has exclusive original jurisdiction to hear cancellation proceedings based on abandonment. A determination of abandonment is a question of fact. There must be evidence of non-use and evidence of an intention on behalf of the registrant to abandon the mark. Cancellation proceedings based on non-use grounds may be brought before the following administrative body: the Registrar of Trademarks. Section 45 of the Trademarks Act provides for a summary procedure vesting jurisdiction in the Registrar of Trademarks to expunge from the register those trademarks that are not in use or to restrict the goods and services for which the trademark is not being used. Cancellation proceedings based on grounds other than absolute, relative or non-use grounds may be brought before the following court or other judicial tribunal: The 2014 amendments to the Trademarks Act, which came into force in June 2019, provide that an application to the Federal Court may also be made by any "person interested" for the cancellation of a registration on the basis that the registration is likely to unreasonably limit the development of any art or industry.
- The administrative body/bodies listed above is/are not independent of the trademark registry.

IV. Standing — A. On Basis of Grounds

- The parties that have legal standing to apply for cancellation vary, depending on the grounds for the cancellation. In proceedings brought before the Federal Court, cancellations based on allegations of abandonment, absolute grounds or relative grounds may be brought by the Registrar of Trademarks or any "person interested."

Section 2 of the Trademarks Act defines a person interested as "any person who is affected or reasonably apprehends that he may be affected by any entry in the register, or by any act or omission or contemplated act or omission under or contrary to this Act, and includes the Attorney General of Canada." Summary cancellation proceedings brought on the basis of non-use may be initiated either by the Registrar of Trademarks or "any person." In such proceedings the requesting party is not required to have a legal interest in the matter.

- For cancellations based on absolute grounds, the following parties have standing: any interested person. Legal interest is required. Section 2 of the Trademarks Act defines a person interested as "any person who is affected or reasonably apprehends that he may be affected by any entry in the register, or by any act or omission or contemplated act or omission under or contrary to this Act, and includes the Attorney General of Canada."

- For cancellations based on relative grounds, the following parties have standing: any interested person. Legal interest is required. Section 2 of the Trademarks Act defines a person interested as "any person who is affected or reasonably apprehends that he may be affected by any entry in the register, or by any act or omission or contemplated act or omission under or contrary to this Act, and includes the Attorney General of Canada."

- For cancellations based on non-use grounds, the following parties have standing: any person. Legal interest is not required. Summary cancellation proceedings brought on the basis of non-use may be initiated either by the Registrar of Trademarks or by "any person." In such proceedings the requesting party is not required to have a legal interest in the matter. any interested person. Legal interest is required. In proceedings brought before the Federal Court, cancellations based on allegations of abandonment, absolute grounds, or relative grounds may be brought by the Registrar of Trademarks or any "person interested." Section 2 of the Trademarks Act defines a person interested as "any person who is affected or reasonably apprehends that he may be affected by any entry in the register, or by any act or omission or contemplated act or omission under or contrary to this Act, and includes the Attorney General of Canada."

- For cancellations based on grounds other than absolute, relative or non-use grounds, the following parties have standing: any interested person. Legal interest is required.

IV. Standing — B. Person/"Interested Person" Defined

- For purposes of standing, a "person" is defined as: both natural and juridical persons. The Trademarks Act defines a "person" to include any lawful trade union and any lawful association engaged in trade or business or the promotion thereof, and the administrative authority of any country, state, province, municipality or other organized administrative area.

- For purposes of standing, an "interested person" is defined as: someone who believes he is being damaged by the registration; someone who has filed an earlier pending application to register a conflicting trademark; someone who owns an earlier conflicting trademark registration; someone who owns earlier rights in a copyright or design that conflicts with the mark that is the subject of the trademark application; someone who owns rights in a conflicting trademark that were acquired through use; someone who is a licensee of any conflicting trademark or other intellectual property right; someone who owns a company name that conflicts with the mark that is the subject of the trademark application; someone who is of the opinion that the mark was not registrable. other: The Trademarks Act defines a "person

interested” to include any person who is affected or reasonably apprehends that he may be affected by any entry in the register, or by any act or omission or contemplated act or omission under or contrary to the Act, and includes the Attorney General of Canada.

IV. Standing — C. Domestic/Foreign Applicant

- The legal standing criteria for domestic and foreign applicants are the same, regardless of the grounds for cancellation.

IV. Standing — D. Multiple Applicants

- More than one applicant may apply jointly for cancellation, regardless of the grounds for cancellation.

IV. Standing — E. Infringement Defendant as Applicant

- In a court action for trademark infringement, cancellation of the plaintiff's trademark registration may be sought by a defendant. Demonstrating the invalidity of the registered trademark being asserted is a full defense to actions for infringement.

V. Representation — A. Qualifications

- The applicant is required to appoint a representative (attorney, agent or other legal representative) in cancellation proceedings in the following circumstances: An applicant must, if he or she has no office or place of business in Canada, provide the name and address of a representative for service.
- The representative must be domestic, i.e., with an office in the jurisdiction.
- Additional professional qualifications required of a representative in cancellation proceedings are as follows: In cancellation proceedings brought at the Federal Court, corporations, partnerships, or unincorporated associations must be represented by a solicitor licensed to practice law in Canada unless the Court in special circumstances grants leave to it to be represented by an officer, partner, or member.

V. Representation — B. Power of Attorney-- Notarization/Legalization Requirements

- A signed power of attorney need not be provided to a representative by an applicant in cancellation proceedings.
- There are no notarization/legalization requirements for a power of attorney form in cancellation proceedings.

VI. Commencement — A. Timing

- Cancellation proceedings that are independent of opposition proceedings may never be commenced before a mark is registered.

VI. Commencement — B. Deadline

- The deadline for bringing cancellation proceedings varies, depending on the grounds for cancellation. For proceedings based on absolute grounds, the deadline is: none. For proceedings based on relative grounds, the deadline is: In proceedings commenced after the expiration of five years from the date of registration of a trademark or from July 1, 1954, whichever is later, no registration may be cancelled on the basis of the previous use or making known of a prior trademark or trade name unless it is established that the person who adopted the registered trademark in

Canada did so with the knowledge of the previous use or making known. Otherwise, there is never a deadline. For proceedings based on non-use grounds, the deadline is: none. For proceedings based on grounds other than absolute, relative or non-use grounds, the deadline is: none.

VI. Commencement — C. Statute of Limitations

- There is no statute of limitations or acquiescence provision that would prevent cancellation, regardless of the grounds for cancellation. While there are no legislative provisions, in proceedings before the Federal Court the defense of acquiescence has been recognized. For the defense of acquiescence to succeed, the Court must be satisfied that the conduct of the plaintiff compromised the assertion of a claim for the enforcement of a legal right.

VII. Partial Cancellation — A. Partial Cancellation

- Partial cancellation of a registration is possible, regardless of the grounds for cancellation.
- For single-class registrations and for multi-class registrations, it is possible to apply for cancellation of some of the goods either within the single class or within a given class, as appropriate, without applying for cancellation of all of the goods within the class.

VIII. Length of Proceedings — A. Length of Proceedings

- The average duration of cancellation proceedings is: One to two years, for summary cancellation proceedings for non-use pursuant to Section 45 of the Trademarks Act. For proceedings in the Federal Court, the average duration is also one to two years.
- After final arguments have been made and/or oral hearings have taken place, a decision will be rendered within the following time frame: For summary cancellation proceedings for non-use before the Registrar of Trademarks, decisions typically will be rendered within four to six months. For proceedings in the Federal Court, decisions typically will be rendered within six months.

IX. Costs and Fees to Initiate — A. Costs and Fees to Initiate

- The following costs and fees are associated with initiating cancellation proceedings: attorney fees; statutory or regulatory fees.
- No official fees are refundable if an application for cancellation is withdrawn, regardless of the grounds for cancellation.
- If an application for cancellation is based on multiple grounds, no additional official fees are due.

X. Documentation-- Notarization / Legalization Requirements — A. Documentation-- Notarization / Legalization Requirements

- No documents need be notarized or legalized in cancellation proceedings.
- The documentation that must be submitted and the procedures necessary to initiate cancellation proceedings vary, depending on the grounds for cancellation. The documentation and procedures to initiate cancellation proceedings based on absolute grounds are as follows: filing, with the Federal Court of Canada: a Notice of Application; a counterclaim in an action for the infringement of the trademark; or a statement of claim in an action claiming additional relief beyond cancellation. The

documentation and procedures to initiate cancellation proceedings based on relative grounds are as follows: filing, with the Federal Court of Canada: a Notice of Application; a counterclaim in an action for the infringement of the trademark; or a statement of claim in an action claiming additional relief beyond cancellation. The documentation and procedures to initiate cancellation proceedings on non-use grounds are as follows: In respect of summary cancellation proceedings under Section 45 of the Trademarks Act, the process is initiated by filing a request with the Registrar to have a notice issued to the registrant. In respect of proceedings at the Federal Court of Canada alleging abandonment, filing, with the Federal Court of Canada: a Notice of Application; a counterclaim in an action for the infringement of the trademark; or a statement of claim in an action claiming additional relief beyond cancellation. The documentation and procedures to initiate cancellation proceedings based on grounds other than absolute, relative or non-use grounds are as follows: filing, with the Federal Court of Canada: a Notice of Application; a counterclaim in an action for the infringement of the trademark; or a statement of claim in an action claiming additional relief beyond cancellation.

XI. Discovery — A. Interrogatories

- Any party may request that any other party answer written questions, under oath ("Interrogatories"), only if the cancellation is based on the following grounds: In proceedings at the Federal Court by way of application, any party may request that the other party that has submitted affidavit evidence answer written or oral questions, where the cancellation proceeding is pursued at the Federal Court of Canada as the court of first instance. This is regarded as a cross-examination and not discovery. Discovery is available only in respect of actions as opposed to applications. The general rule is that all proceedings will be by action unless a statute or the Rules provide otherwise. In an action, parties exchange pleadings and can engage in oral and written discovery. The usual method of commencing an action is by issuing a Statement of Claim. Applications are more streamlined and generally are used in situations where it is unlikely that there will be any material facts in dispute. Applications are commenced by the issuance of a Notice of Application, and evidence is introduced by affidavit. In summary cancellation proceedings for non-use under Section 45 of the Trademarks Act, there is no opportunity for any party to answer written questions, under oath.
- The general rules concerning the timing, number and scope of Interrogatories are as follows: The Federal Court Rules allow for cross-examination on an affidavit filed in cancellation proceedings with the Federal Court. In application proceedings before the Federal Court, the parties must complete cross-examination on affidavits within 20 days after the filing of respondent's affidavit or the expiration of time for doing so. In general, the scope of questions may cover any matter relevant to the determination of the issues in question in respect of which the affidavit was filed or relevant to the credibility of the witness. Cross-examination is not confined to the four corners of the affidavit but may cover any matters relevant to the determination of the issue in respect of which the affidavit was filed. However, cross-examination on an affidavit is more limited in scope than examinations for discovery. The party cross-examining should not be permitted to embark on "fishing expeditions." Cross-examination may be either written or oral.
- If the requested party fails to provide answers to Interrogatories, in whole or in part, the procedure by which the requesting party can compel compliance is as follows: bring a motion in the Federal Court to compel compliance.
- If the requested party fails to provide answers to Interrogatories, in whole or in part,

the consequences are as follows: A person conducting an oral cross-examination may adjourn the examination and bring a motion for directions if the person being examined is believed to be providing answers that are evasive. The person conducting the cross-examination may request: (1) an order that the person answer a question that was improperly objected to; (2) an order striking out all or part of the person's evidence; (3) an order to require the person or the party on whose behalf the person is being examined to pay the costs of the examination.

- The grounds on which a party may justify its refusal to respond to Interrogatories, in whole or in part, and the circumstances in which these grounds are applicable are as follows: the question or questions are not relevant to the determination of the issues in question in respect of which the affidavit was filed and are not relevant to the credibility of the witness. The following three types of privilege are available to be claimed: litigation privilege, settlement privilege, and solicitor-client privilege. Litigation privilege protects from disclosure any documents reasonably prepared in contemplation of litigation. Settlement privilege protects from disclosure any communications that are for the sole purpose of achieving settlement. Solicitor-client privilege protects from disclosure all communications, both written and oral, that pass between a solicitor and his or her client, or prospective client, for the purpose of giving or receiving legal advice.
- Answers to Interrogatories may be used as evidence in the action.

XI. Discovery — B. Document Requests

- Any party may request that any other party produce documents in response to written document requests ("Document Requests"). In application proceedings before the the Federal Court, the only form of Document Requests available is that which is part of cross-examination on an affidavit submitted in the proceedings. In summary cancellation proceedings for non-use under Section 45 of the Trademarks Act, it is not possible to make Document Requests of the other party.
- The general rules concerning the timing, number and scope of Document Requests are: In proceedings by way of application before the Federal Court, a direction to attend cross-examination on an affidavit may direct the person to be examined to produce for inspection at the cross-examination all documents and other material requested in the direction to attend that are in the person's possession, power, or control and that are relevant to the application (with the exception of any documents for which privilege has been claimed or for which relief from production has been granted by the Court). A party seeking cross-examination and related document production in relation to an affidavit filed in the proceeding shall not do so until the party has served on all other parties every affidavit on which the party intends to rely in the application, except with the consent of all other parties or with leave of the Court.
- If the requested party fails to provide documents in response to Document Requests, in whole or in part, the procedure by which the requesting party can compel compliance is as follows: A person conducting an oral cross-examination may adjourn the examination and bring a motion for directions if the person being examined fails to produce a document. The person conducting the cross-examination may: (1) seek an order that the person comply with the request; (2) seek an order striking out all or part of the person's evidence; (3) seek an order to require the person or the party on whose behalf the person is being examined to pay the costs of the examination.
- If the requested party fails to provide documents in response to Document Requests, in whole or in part, the consequences are as follows: See above.

- The grounds on which the requested party may justify its refusal to produce documents in response to Document Requests, in whole or in part, and the circumstances in which these grounds are applicable are as follows: the document is privileged; the document is irrelevant to the proceedings; or, by reason of the nature of the document or the number/volume of documents requested, it would be unduly onerous to require the person to produce the materials. The following three types of privilege are available to be claimed: litigation privilege, settlement privilege, and solicitor-client privilege. Litigation privilege protects from disclosure any documents reasonably prepared in contemplation of litigation. Settlement privilege protects from disclosure any communications that are for the sole purpose of achieving settlement. Solicitor-client privilege protects from disclosure all communications, both written and oral, that pass between a solicitor and the client, or prospective client, for the purpose of giving or receiving legal advice.
- Documents obtained in response to Document Requests may be used as evidence in the action.

XI. Discovery — C. Depositions

- Any party may request that one or more witnesses for any other party appear in person to be cross-examined under oath ("Depositions").
- The rules concerning the timing, location, subject and permitted scope of inquiry of a Deposition are as follows: In the Federal Court, a Deposition (oral examination) occurs after pleadings have closed. Unless the Court allows, a person may be examined only once. If the examinee is a corporation, partnership or unincorporated association, a representative will be selected for examination. If the examinee is the Crown, the Attorney General will select a representative. Non-parties may be examined with leave of the Court. Where a person to be examined resides in Canada and the person and the parties cannot agree on where to conduct the oral examination, it shall be conducted in the place closest to the person's residence where a Superior Court sits. Where a person to be examined on an oral examination resides outside Canada, the time, place, manner and expenses of the oral examination shall be as agreed on by the person and the parties or, on motion, as ordered by the Court. The scope of examination required will depend on the nature of the examinee to answer questions to the best of his or her knowledge, information, and belief if the question is relevant to an unadmitted allegation of fact in a pleading or regards information of knowledgeable witnesses.
- If the requested party fails to provide a requested witness for a Deposition or fails to answer certain questions during a Deposition, the procedure by which the requesting party can compel compliance is as follows: bring a motion in the Federal Court of Canada.
- If the requested party fails to provide a requested witness for a Deposition or fails to answer certain questions during a Deposition, the consequences are as follows: A person conducting an oral cross-examination may adjourn the examination and bring a motion for directions if the person being examined is believed to be providing answers that are evasive. The person conducting the cross-examination may request: (1) an order that the person answer a question that was improperly objected to; (2) an order striking out all or part of the person's evidence; (3) an order to require the person or the party on whose behalf the person is being examined to pay the costs of the examination.
- The grounds on which the requested party may justify its refusal to appear for or to answer questions in a Deposition, in whole or in part, and the circumstances in which these grounds are applicable are as follows: the question or questions are not

relevant to the determination of the issues in question in respect of which the affidavit was filed, are not relevant to the credibility of the witness, are disproportionate in the circumstances of the litigation, or call for information that is protected by a recognized form of privilege.

- Answers provided during Depositions may be used as evidence in the action.

XII. Burden of Proof — A. Burden of Proof

- The burden of proof can shift to the other party during the course of cancellation proceedings under the following circumstances: In summary cancellation proceedings before the Registrar of Trademarks, the burden never shifts and always rests with the registrant to show use. In cancellation proceedings brought in the Federal Court, the onus lies on the party attacking the registration to show that it should be expunged, as until it is shown otherwise the registration is presumed to be valid.

XIII. Written Arguments — A. Requirement/Deadline

- Written arguments are mandatory. With respect to all proceedings at the Federal Court of Canada, written arguments are required. For summary cancellation proceedings alleging non-use under Section 45 of the Trademarks Act, written arguments are optional.
- The deadline for the applicant to submit written arguments is determined by statute, rule or regulation and is: In proceedings at the Federal Court of Canada brought by Notice of Application, under the default timing set by the Court's Rules, an applicant shall, within 20 days after completion of all parties' cross-examinations or the expiration of the time for doing so, whichever is earlier, serve and file the applicant's record, which contains the applicant's memorandum of fact and law. For summary cancellation proceedings alleging non-use under Section 45 of the Trademarks Act, the Registrar will send a notice granting the requesting party/applicant an administrative deadline of two months from the date of that notice to file written representations or to notify the Registrar that no written representations will be filed. The deadline for the respondent to submit written arguments is determined by statute, rule or regulation and is: In proceedings at the Federal Court of Canada brought by Notice of Application, under the default timing set by the Court's Rules, a respondent to an application shall, within 20 days after service of the applicant's record, serve and file the respondent's record, which contains the respondent's memorandum of fact and law. For summary cancellation proceedings alleging non-use under Section 45 of the Trademarks Act, once the deadline for filing the requesting party's written representations has expired or the Registrar has received the requesting party's response to the Registrar's notice, whichever is earlier, the Registrar will send another notice granting the registered owner an administrative deadline of two months from the date from the effective date of service of the requesting party/applicant's written representations (or the expiry of the deadline for so doing) or to notify the Registrar that no written representations will be filed.

XIII. Written Arguments — B. Extensions to File

- Extensions of time are available to the applicant to file written arguments. The duration of the extension is: in proceedings at the Federal Court of Canada by way of Notice of Application, less than or equal to one-half of the period sought to be extended, with the consent of the other party, or longer, with a Court order. Additional extensions may be sought from the Court on motion and will be granted at the Court's

discretion. For summary cancellation proceedings alleging non-use under Section 45 of the Trademarks Act, no extensions of time will be granted absent exceptional circumstances. The following number of extensions is available: In proceedings at the Federal Court of Canada by way of Notice of Application, after the first extension request a further extension will be granted only at the discretion of the Court. For summary cancellation proceedings alleging non-use under Section 45 of the Trademarks Act, further extensions after the first extension request (to file evidence) will be granted in most instances provided the other side consents.

- Extensions of time are available to the respondent to file written arguments. The duration of the extension is: in proceedings at the Federal Court of Canada by way of Notice of Application, less than or equal to one-half of the period sought to be extended, with the consent of the other party, or longer, with a Court order. Additional extensions may be sought from the Court on motion and will be granted at the Court's discretion. For summary cancellation proceedings alleging non-use under Section 45 of the Trademarks Act, no extensions of time will be granted absent exceptional circumstances. The following number of extensions is available: In proceedings at the Federal Court of Canada by way of Notice of Application, after the first extension request a further extension will be granted only at the discretion of the Court. For summary cancellation proceedings alleging non-use under Section 45 of the Trademarks Act, further extensions after the first extension request will be granted in most instances provided the other side consents.
- Extensions require the consent of the adverse party. Extensions of time may require the consent of the other party depending on the circumstances.
- Extensions require the approval of the court, other judicial tribunal or administrative body.
- The following official fees must be paid to obtain extensions: In proceedings at the Federal Court of Canada by way of Notice of Application, no official fees are required to obtain an extension. For summary cancellation proceedings alleging non-use under Section 45 of the Trademarks Act, an official fee of CAD 150 is required.

XIV. Oral Hearings — A. Oral Hearings

- Oral hearings are permitted in cancellation proceedings.
- The determination of whether oral hearings will take place is made by: In non-use proceedings before the Registrar of Trademarks, parties may optionally request an oral hearing. If one or more of the parties requests a hearing, a hearing will take place. In proceedings before the Federal Court of Canada, a hearing will typically be held unless in certain circumstances the Court determines that the matter can be determined in writing without a hearing (for example, in cases where a consent judgment or a default judgment is sought rather than a fully contested proceeding).

XV. Evidence — A. To Establish Absolute Grounds

- The following types of evidence may be submitted to establish absolute grounds: affidavit evidence in the form of survey evidence; evidence of use of confusingly similar marks during the relevant period (including specific evidence of the nature of products/services, channels of trade and customer base, history of use, samples of use, etc.); state-of-the-Register evidence regarding relevant marks of record in the Canadian Trademarks Database; evidence regarding registrant's descriptive use; evidence from industry expert; certified copies of relevant Trademarks Office files.
- Evidence must be submitted to: the Federal Court of Canada and the other party.

- Evidence must be submitted by the following deadline: under the default timing set by the Federal Court of Canada's Rules, the Applicant's evidence must be served on the other side and filed with the Federal Court of Canada within 30 days after the issuance of the Notice of Application.

XV. Evidence — B. To Establish Relative Grounds

- The following types of evidence may be submitted to establish relative grounds: affidavit evidence in the form of evidence of use of a confusingly similar trademark or trade names during the relevant period (including specific evidence of the nature of products/services, channels of trade and customer base, history of use, samples of use, sales figures, etc.); certified copies of Trademarks Office files and/or certified copy of prior application/registration; evidence regarding use by registrant; survey evidence; expert evidence from a linguist.
- Evidence must be submitted to: the Federal Court of Canada and the other party.
- Evidence must be submitted by the following deadline: under the default timing set by the Federal Court of Canada's Rules, the Applicant's evidence must be submitted within 30 days after the issuance of the Notice of Application.

XV. Evidence — C. To Establish Non-Use Grounds

- The following types of evidence may be submitted to establish non-use grounds: For summary cancellation proceedings for non-use under Section 45 of the Trademarks Act, the requesting party is not permitted to submit evidence in an effort to establish non-use. Only affidavit evidence from the registrant/responding party is permitted. In proceedings at the Federal Court of Canada alleging abandonment, affidavit evidence may be filed. Such evidence could attempt to set out comprehensive examples of the registrant's business materials to show that the mark in question or the product in question is not being offered by the registrant. Evidence would also need to establish an intention on behalf of the registrant to abandon the trademark. Such evidence could include indications of a pattern in other jurisdictions (by way of certified copies of official records) of not maintaining the same mark. Evidence in the form of a compilation of written materials originating from the registrant that indicate an intention to abandon the mark and/or discontinue the related product/service would be helpful, as would evidence that the registrant has not taken action to prevent infringement of the mark.
- Evidence must be submitted to: For summary cancellation proceedings for non-use under Section 45 of the Trademarks Act, the evidence from the registrant/respondent must be submitted to the Registrar of Trademarks - Section 45 Division and the other side. In proceedings at the Federal Court of Canada alleging abandonment, evidence would be submitted to the Federal Court of Canada and the other party.
- Evidence must be submitted by the following deadline: For summary cancellation proceedings for non-use under Section 45 of the Trademarks Act, evidence must be submitted by the registrant within three months of the issuance of the Section 45 Notice. No evidence for the applicant/requesting party is permitted. In proceedings at the Federal Court of Canada alleging abandonment, under the default timing set by the Court's Rules, the applicant's evidence must be submitted within 30 days after the issuance of the Notice of Application.

XV. Evidence — D. To Establish Other Grounds

- The following types of evidence may be submitted to establish grounds other than absolute, relative or non-use grounds: Evidence to establish that the registration of a

mark is likely to unreasonably limit the development of any art or industry may include: affidavit evidence in the form of survey evidence; evidence that the registered mark comprises elements that are utilitarian or functional; evidence from industry experts; certified copies of relevant Trademarks Office files.

- Evidence must be submitted to: the Federal Court of Canada and the other party.
- Evidence must be submitted by the following deadline: under the default timing provided by the Court's Rules, the Applicant's evidence must be served on the other side and filed with the Federal Court of Canada within 30 days after the issuance of the Notice of Application.

XV. Evidence — E. Applicant's Proof of Use

- The applicant must submit proof of use of the mark on which the cancellation is based. In proceedings at the Federal Court where relative grounds are alleged, the applicant must submit proof of use of the mark on which the cancellation is based.

XV. Evidence — F. Applicant's Extensions of Time

- Extensions of time available for the applicant's submission of evidence vary, depending on the grounds on which the cancellation proceedings are based. For cancellation proceedings based on non-use grounds, the following extensions are available: For cancellation proceedings based on non-use under Section 45 of Trademarks Act, the Registrar may grant an extension of time for the registered owner to file evidence in response to the Section 45 Notice if the Registrar is satisfied that the facts justify the need for an extension of time. The Registrar generally will consider only one request for an extension of time up to a maximum benchmark of two months with sufficient reasons. A request for such an extension of time must be accompanied by the prescribed fee and must satisfy the Registrar that the circumstances justify an extension of time. The Registrar generally will not grant an extension of time beyond the maximum benchmark and will do so only if the Registrar determines, on the facts of the particular case, that the circumstances justify a further extension of time. In particular, the Registrar will not grant a further extension of time beyond the maximum benchmark of two months on the basis that the parties consent or are pursuing settlement negotiations. For cancellation proceedings alleging abandonment commenced in the Federal Court of Canada, one extension less than or equal to one-half of the period sought to be extended is available, with the consent of the other side, or longer, with an order of the Court.
- Official fees payable to obtain an extension for submitting evidence are as follows: The official fee for an extension of time to submit evidence in a cancellation proceeding based on non-use pursuant to Section 45 of the Trademarks Act is CAD 150. No official fees are payable to obtain an extension for submitting evidence in the Federal Court.

XV. Evidence — G. Additional Evidence

- Additional evidence may be submitted at a later stage in the cancellation proceedings. The deadline for submitting additional evidence is: With respect to non-use proceedings brought under Section 45 of the Trademarks Act, a request for a retroactive extension of time to file evidence will be granted only if the request is accompanied by the prescribed fee and supported by sufficient facts for the Registrar to determine that the failure to file the evidence within the time limit was not reasonably avoidable. The Registrar generally will not grant a request for a retroactive extension of time for filing additional evidence after the requesting party has filed its

written representations. Retroactive extensions of time to file additional evidence are not available after the Registrar has reached the final decision under Section 45.

XV. Evidence — H. Evidence in Reply/Deadline and Extensions

- Evidence in reply is optional. In respect of an application with the Federal Court of Canada for cancellation, the onus is on the applicant to establish grounds for cancellation. There is no evidentiary burden on the respondent, although evidence in reply may, in many instances, assist the respondent's position. In respect of summary cancellation proceedings for non-use under Section 45 of the Trademarks Act, the evidentiary burden is on the respondent to show use of the mark by submitting evidence. It is mandatory to submit evidence in an effort to maintain the registration.
- Evidence in reply must be submitted by the following deadline: In respect of an application with the Federal Court of Canada for cancellation, under the default timing provided by the Court's Rules, the respondent must, within 30 days after service of the applicant's affidavits, serve and file any supporting affidavits and documentary exhibits. In respect of summary cancellation proceedings for non-use under Section 45 of the Trademarks Act, the initial deadline to submit evidence is three months from the issuance of the Notice.
- The following extensions of time for the respondent's submissions are available: In respect of an application for cancellation in the Federal Court of Canada one extension less than or equal to half of the period sought to be extended is available with consent of the other side or longer with an order of the Court. With respect to summary cancellation proceedings for non-use under Section 45 of the Trademarks Act the respondent is entitled to a three-month extension of time within which to submit evidence. Any further extension would only be available on consent of the other side or based on exceptional circumstances.
- The official fees payable to obtain these extensions are: Official fees are payable only in respect of extensions of time in summary expungement proceedings for non-use under Section 45 of the Trademarks Act, in the amount of CAD 150.
- Petitioner can demand that respondent provide additional particulars relating to the respondent's proffered evidence, using the following procedure: The petitioner may request that the respondent's affidavit answer written or oral questions, under oath, where the cancellation proceeding is pursued at the Federal Court of Canada as the court of first instance. In respect of summary cancellation proceedings for non-use under Section 45 of the Trademarks Act, the petitioner is not permitted to demand particulars from the respondent.

XV. Evidence — I. Proof of Respondent's Use

- The respondent may submit the following kinds of evidence to prove use: invoices (To constitute use, the invoice must be associated with the goods at the time of transfer of the property in or possession of the goods. The display of the mark on invoices may constitute use in association with services.); catalogues (The mere display of a trademark in a catalogue does not on its own demonstrate use in association with goods. However, if available at the point of sale, catalogues may show use in association with goods, as the catalogues may be used for the purpose of placing purchase orders in the normal course of trade. The appearance of a mark in a catalogue can support use in association with services.); evidence of turnover; packaging; labels; price lists (The mere display of a trademark on a price list does not in itself constitute use in association with goods. However, when a purchaser orders goods with reference to a price list that bears the trademark and the

trademark appears on invoices, the trademark is in use with the goods because notice of the association was given at the time of transfer.); advertisements (Advertising by itself may not be use of a trademark in association with goods. Media advertising constitutes use in association with services.); written statements (The appearance of a mark on explanatory literature that is made available during the purchase of the goods is use.); market surveys; use of the mark on the Internet; maintenance of a website (Where a customer can order goods from a website that displays the mark, there may be use of the mark in association with the goods. Where the services advertised in association with the mark on the website are available in Canada, this may support use in association with services.); use of the mark on a social media site (This may support use in association with services, if the services are available to be performed in Canada.).

- In assessing whether "use has been made," sufficient use is demonstrated by: In summary cancellation proceedings for non-use, the registrant need only prove some evidence of use beyond a bald statement to that effect. The affidavit must show the use being made of the trademark and that use is in the ordinary course of trade in association with the relevant goods/services covered under the registration and that the use has taken place during the relevant period (within three years of the issuance of the Section 45 Notice). Evidence of a single sale may be sufficient to establish use in the normal course of trade depending on the circumstances surrounding the transaction, provided the evidence was not manufactured for the sole and deliberate purpose of protecting the trademark registration.
- The following factors are considered when determining whether a mark has been sufficiently used: the nature of the goods or services at issue; market characteristics; the scale and frequency of use of the mark; export use.
- The respondent can demand that the petitioner provide additional particulars relating to the petitioner's proffered evidence, using the following procedure: With respect to summary cancellation proceedings for non-use under Section 45 of the Trademarks Act the petitioner is not permitted to submit evidence or demand the provision of additional particulars. Regarding an application at the Federal Court alleging abandonment the petitioner is permitted to submit evidence and the respondent can request additional particulars through cross-examination on the affidavit.

XV. Evidence — J. Consequences of Failure to Respond

- The consequences if a respondent fails to file a response or answer to a petition for cancellation are as follows: The court, other judicial tribunal or administrative body may consider and decide the matter on the merits despite such failure. Failure to respond to a Section 45 Notice will result in an automatic decision to expunge the registration without further notice to the owner in non-use proceedings before the Registrar of Trademarks. The court, other judicial tribunal or administrative body must consider and decide the matter on the merits despite such failure. In cancellation proceedings before the Federal Court, the Court must be satisfied that the requested cancellation should be granted based on the law and evidence notwithstanding non-participation by the other party.

XVI. Defenses — A. Acquired Distinctiveness

- Acquired distinctiveness can be a valid defense in cancellation proceedings based on absolute grounds. The following criteria are used to establish acquired distinctiveness: Acquired distinctiveness is a question of fact. The critical factor to consider is the message the trademark actually conveys to the public. What portion of

the public must recognize the mark as distinctive of the owner and not, for instance, descriptive is a matter that is not settled. Generally, it must be a substantial portion of the trade using the product or service. For the mark to be regarded as distinctive, the mark and the wares/services must be associated; the mark's owner must use this association in manufacturing/providing and selling the wares/services; and this association must enable the mark's owner to distinguish its wares from those of another party.

XVI. Defenses — B. Excusable Non-use

- Non-use can be excused, thereby avoiding cancellation, if: in respect of summary cancellation proceedings for non-use under Section 45 of the Trademarks Act, the registrant/responding party can put forward evidence of unusual, uncommon, or exceptional circumstances justifying non-use. The criteria often used to assess special circumstances include the following: length of time during which the mark has not been used, whether the reasons for non-use were out of the control of the registrant, and whether there exists a serious intention to resume use shortly. In respect of an application with the Federal Court of Canada for cancellation based on an allegation of abandonment, the special circumstances excusing non-use in summary expungement proceedings under Section 45 of the Trademarks Act are very much linked to the determination of whether the trademark owner has formed an intention to abandon the mark. If similar special circumstances regarding non-use are present, it may not be established that the necessary element of an intention to abandon the mark is present to support cancellation based on an allegation of abandonment.

XVII. Monetary Awards/Attorney Fees — A. Basis/Amount of Award

- A cancellation decision may include a formal monetary award against the losing party, regardless of the grounds for cancellation. In respect of cancellation proceedings in the Federal Court of Canada, a monetary award regarding costs/attorney fees may, at the discretion of the Court, be ordered. Currently, no monetary award can be made in respect of summary cancellation proceedings alleging non-use under Section 45 of the Trademarks Act at the tribunal of first instance. Under recent amendments to the Trademarks Act (not yet in force), the tribunal of first instance will be empowered with the discretion to award costs in the appropriate circumstances.
- Monetary awards are based on: statute/schedule/tariff. In proceedings in the Federal Court of Canada, awards of costs may be fixed by reference to the Court's standard tariff of costs, or alternatively based on a percentage of actual fees incurred. The quantum of costs, and method of setting costs, is within the Court's discretion in a given case.
- The amount of a monetary award is likely to be influenced by the following circumstances: The amount of the costs/attorney fees award is at the discretion of the Court. The Court can consider any factor, including the conduct of the parties, the result of the proceedings, the complexity of the issues, and whether any step in the proceeding was improper.

XVII. Monetary Awards/Attorney Fees — B. Attorney Fees

- The successful party is entitled to recover attorney fees in cancellation proceedings based on particular grounds, as follows: In respect of cancellation proceedings in the Federal Court, a monetary award regarding costs/attorney fees may, at the discretion

of the Court, be ordered. In summary non-use cancellation proceedings before the Registrar of Trademarks, the successful party is not entitled to recover attorney fees.

- The award of attorney fees in cancellation proceedings is discretionary. In proceedings in the Federal Court of Canada, awards of costs may be fixed by reference to the Court's standard tariff of costs, or alternatively based on a percentage of actual fees incurred. The quantum of costs, and method of setting costs, is within the Court's discretion in a given case.

XVIII. Conclusion of Proceedings — A. Effect of Decision

- A decision in cancellation proceedings is valid against all third parties, regardless of the grounds on which the proceedings were brought.
- A decision ordering cancellation of a mark takes effect: In respect of summary cancellation proceedings for non-use under Section 45 of the Trademarks Act, cancellation will take place following the expiration of the appeal deadline (two months), assuming no appeal has been initiated. For cancellation proceedings by way of application at the Federal Court of Canada, cancellation will take place following the expiration of the appeal deadline (30 days, not including any days in July or August), assuming no appeal has been initiated. Based on current practice, it usually takes at least three months for cancellation of a mark to take effect.

XVIII. Conclusion of Proceedings — B. Withdrawal or Termination of Proceeding/Costs

- Cancellation proceedings can be terminated by withdrawing the cancellation application, regardless of the grounds for cancellation. For cancellation proceedings by way of application at the Federal Court of Canada, a party may discontinue the proceeding by serving and filing a notice of discontinuance. Neither leave of the Court nor consent of the other party is required to file a notice of discontinuance. There may be cost consequences with discontinuance. In respect of summary cancellation proceedings for non-use under Section 45 of the Trademarks Act, the proceedings can be terminated only with the consent of both parties.
- Withdrawal of a cancellation application requires the approval of the court, other judicial tribunal or administrative body if the cancellation action is based on grounds other than absolute, relative or non-use grounds, i.e., non-use grounds brought under Section 45 of the Trademarks Act only.
- Approval of the other party to the proceeding is required for withdrawal of a cancellation application based on grounds other than absolute, relative or non-use grounds, i.e., specifically, non-use grounds brought under Section 45 of the Trademarks Act.
- When cancellation applications are withdrawn, the cost of the proceedings is borne by: In respect of summary cancellation proceedings for non-use under Section 45 of the Trademarks Act, there currently can be no award of costs. Under recent amendments to the Trademarks Act (not yet in force), the Registrar of Trademarks will be empowered with the discretion to award costs in non-use cancellation proceedings. For cancellation proceedings by way of application at the Federal Court of Canada, a party may discontinue the proceeding by serving and filing a notice of discontinuance. Neither leave of the Court nor consent of the other party is required to file a notice of discontinuance. There may be cost consequences with discontinuance. Unless otherwise ordered by the Court or agreed by the parties, a party against whom an application has been discontinued is entitled to costs.

XIX. Appeals — A. Availability/Deadline

- A cancellation decision may be appealed.
- Appeals of cancellation decisions must be brought before the following deadline: within 30 days (not including any days in July or August) after the pronouncement of the judgment for cancellation proceedings by way of application at the Federal Court of Canada. With respect to summary expungement proceedings for non-use under Section 45 of the Trademarks Act, an appeal may be filed within two months from the date on which notice of the decision was dispatched by the Registrar.

XIX. Appeals — B. Forum

- The court, other judicial tribunal or administrative body that hears an appeal is determined by the grounds on which the cancellation proceeding was brought. For cancellation proceedings brought on absolute grounds, appeals are heard by the following court or other judicial tribunal: appeals from proceedings brought in the Federal Court are heard by the Federal Court of Appeal. For cancellation proceedings brought on relative grounds, appeals are heard by the following court or other judicial tribunal: appeals from proceedings brought in the Federal Court are heard by the Federal Court of Appeal. For cancellation proceedings brought on non-use grounds, appeals are heard by the following court or other judicial tribunal: a first appeal from a decision of the Registrar of Trademarks in non-use cancellation proceedings may be brought to the Federal Court. A subsequent appeal may be brought from decisions of the Federal Court to the Federal Court of Appeal. For cancellation proceedings brought on grounds other than absolute, relative or non-use grounds, appeals are heard by the following court or other judicial tribunal: appeals from proceedings brought in the Federal Court are heard by the Federal Court of Appeal.

XIX. Appeals — C. New Evidence

- New evidence may be submitted on appeal. Currently, new evidence may be submitted on appeal. New evidence may be submitted on appeal in respect of summary expungement proceedings alleging non-use under Section 45 of the Trademarks Act. Under recent amendments to the Trademarks Act (not yet in force), leave will be required to be obtained from the Federal Court before new evidence may be submitted on appeal in respect of non-use proceedings. For cancellation proceedings brought at first instance at the Federal Court, new evidence may be submitted on appeal to the Federal Court of Appeal only with leave of the Court in exceptional circumstances.

XIX. Appeals — D. Representation/Cost/Awards

- The approximate cost range of official fees (in local currency) to file an appeal is: CAD 50.
- Specialist counsel is neither required nor recommended for an appeal of a cancellation decision.
- An appeal decision can include a monetary award against the losing party even if the earlier decision did not include a monetary award. The approximate award, in local currency, would be: Some measure of attorney fees may be awarded at the discretion of the Court in appeals to the Federal Court and/or Federal Court of Appeal.

XIX. Appeals — E. Scope

- An appeal consists of a complete rehearing of the matter only for appeals to the Federal Court from summary non-use proceedings where new evidence is filed on appeal that would have materially affected the Registrar of Trademarks' decision below. Where no such evidence is filed on appeal, the appeal proceeds as a typical appeal on ordinary appellate standards of review on questions of law, fact, and mixed law and fact. Subsequent appeals to the Federal Court of Appeal are heard based on errors of law, fact, and mixed law and fact. Such appeals are not a complete rehearing of the matter.

XIX. Appeals — F. Further Appeals/Alternatives to Appeal

- Appeal decisions may be further appealed. Appeal decisions may be appealed to: All decisions of the Federal Court may be appealed to the Federal Court of Appeal. Decisions of the Federal Court of Appeal may be appealed with leave to the Supreme Court of Canada. Details regarding the deadlines and fees for further appeal are as follows: Decisions of the Federal Court may be appealed to the Federal Court of Appeal within 30 days, not including any days in July and August, after the pronouncement of the judgment or determination appealed from or within any further time that a judge of the Federal Court of Appeal may fix or allow before or after the end of those 30 days. The fee to file a notice of appeal is CAD 50. The notice of application for leave to appeal to the Supreme Court of Canada must be served on all other parties to the case and filed with the Registrar of the Court within 60 days (excluding the month of July) after the date of the judgment appealed from. In the case of an appeal for which leave to appeal is required and has been granted, a notice of appeal shall be served on all other parties and filed with the Registrar of the Court within 30 days after the date of the judgment appealed from or the date of the judgment granting leave, as the case may be. The fee to file a notice of application for leave to appeal is CAD 75.
- There is no alternative procedure to an appeal.

XX. Consequences — A. Status of Mark After Cancellation

- The terminology relating to cancellation proceedings can vary from jurisdiction to jurisdiction. Within jurisdictions, the grounds for bringing a cancellation proceeding can ultimately influence the legal consequences of the cancellation. In this jurisdiction, if an applicant is successful in obtaining cancellation, the legal consequences of the cancellation will depend on the grounds on which the proceedings were brought (see below).
- If an applicant succeeds in obtaining cancellation on absolute grounds: the mark is considered as if it were never registered.
- If an applicant succeeds in obtaining cancellation on relative grounds: the mark is considered as if it were never registered.
- If an applicant succeeds in obtaining cancellation on non-use grounds: the mark is considered as having been validly registered until the date of the decision to cancel the mark.
- If an applicant succeeds in obtaining cancellation on grounds other than absolute, relative or non-use grounds: Other: Depending on the grounds raised and the particular factual circumstances, the mark may be considered as if it were never registered (void ab initio) or it may be considered to have been validly registered until the date of the decision to cancel the mark.

XX. Consequences — B. Licenses, Assignments, Other Transactions

- The consequences for past assignments if a mark is cancelled are: none.
- The consequences for past licenses if a mark is cancelled are: none.
- The consequences for past contracts if a mark is cancelled are: none.

XXI. Notification to TM Office — A. Notification to TM Office

- There is no requirement to formally notify the Trademark Office following a decision to cancel a mark; cancellation is automatic regardless of the grounds on which the proceedings were brought. In respect of proceedings for cancellation or related appeals heard at the Federal Court, Federal Court of Appeal or the Supreme Court of Canada, an officer of the Registry of the Federal Court shall file with the Registrar of Trademarks a certified copy of every judgment or order relating to any trademark on the Register. With respect to cancellation decisions that are not appealed in summary cancellation proceedings for non-use under Section 45 of the Trademarks Act, the Registrar of Trademarks will be notified by the Board member who has heard the matter.

XXII. Refiling of Identical Mark — A. Refiling of Identical Mark

- After a cancellation, depending upon the grounds on which the proceeding was based, an application to register the mark may be refiled: by either of the parties to the action; by a third party. In matters strictly related to cancellation there would be no legal barrier preventing any party from subsequently filing a new trademark application.
- There are no time limits for refiling following the cancellation of a mark.

XXIII. Collective Marks — A. Collective Marks

- Collective marks may not be registered in this jurisdiction.

XXIV. Certification Marks — A. Certification Marks

- Certification marks may be registered in this jurisdiction. Certification marks are defined as: a sign or combination of signs that is used or proposed to be used for the purpose of distinguishing or so as to distinguish goods or services that are of a defined standard from those that are not of that defined standard, with respect to: the character or quality of the goods or services, the working conditions under which the goods are produced or the services performed, the class of persons by whom the goods are produced or the services performed, or (the area within which the goods are produced or the services performed. Trademarks Act: (R.S.C. 1985, c. T-13), Section 2.
- The provisions discussed throughout this jurisdictional profile all apply to the cancellation of certification marks.

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